United Nations Educational, Scientific and Cultural Organization

Intangible Cultural Heritage

Involving the communities concerned

Unit 7 PowerPoint presentation

UNESCO
Intangible Cultural Heritage Section

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In this presentation …

- Case study
- Why community participation?
- What the Convention and the ODs say
- When community participation is needed
- How to achieve community participation and consent

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What the Convention and the ODs say (and do not say)

- Involve the communities concerned in management of their ICH (Article 15)
- Obtain and document the free, prior and informed consent of communities concerned (ODs 1, 2, 7 and 101(b))
- No specific guidance on *how* to identify communities or how to involve them in safeguarding their ICH

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Why community participation?

Sbek Thom shadow theatre
© National Museum of Cambodia

- People enact and transmit ICH and identify with it (Article 2.1)
- They carry with them the knowledge and skills for enacting and transmitting ICH (Article 2.1)
- It is their heritage; they are its stewards
- Any safeguarding will fail without the communities' participation and consent (Article 15)

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Role of States and the rights of communities

- The Convention is an agreement between States
- It does not impose obligations on communities
- The Convention and the ODs request States Parties to involve and assist communities, with their consent, in managing and safeguarding their ICH (Articles 11(b) and 15)

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Community participation in what?

- Identifying and defining (Article 11(b))
- Inventorying (Articles 12 and 15)
- Raising awareness (Articles 14 and 15)
- Capacity building (Articles 14 and 15)
- Safeguarding, management (Article 15)
- Nominations (ODs 1, 2 and 7)
- International assistance requests (OD 12)
- Periodic reporting (ODs 157 and 160)

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Community participation in inventorying their ICH

... what is really needed is for the community to participate in the process [of inventorying] ... If the inscription [on an inventory] takes place without dialogue with the community ... I wonder whether there will actually be any involvement in safeguarding ...

Dr Londres Fonseca (IPHAN, Brazil)

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Case study: documenting Subanen indigenous knowledge (the Philippines)

- Elders realized that their knowledge about local plants was not being passed on to younger community members
- Trained young people to document this knowledge within the community
- Gained copyright protection
- Included materials in the school curriculum
- Enhanced transmission

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Community participation in raising awareness

- The ODs encourage States Parties to ensure community participation in raising awareness about their own ICH (OD 101(b))
- And to obtain their free, prior and informed consent (OD 101(b))
- This can help to ensure that awareness-raising activities do not misrepresent or disadvantage communities and their ICH (OD 102)

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Community participation in nominations and international assistance requests

Proof is required of:

- Community participation in:
    - Preparation of the files (ODs 1, 2, 7 and 12)
    - Identification of the ICH/projects concerned (Article 2.1; ODs 1 and 2)
- Community consent for submission of nominations/requests (ODs 1, 2 and 7)
- Community commitment to safeguard the element, if appropriate (OD 1)

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Case study: the Otomí-Chichimecas nomination process (Mexico)

© Government of the State of Queretaro, Mexico, 2007

- Community consultation meetings and opinion poll
- Safeguarding proposals come from the community
- Regional forum and community declaration
- Representative management / safeguarding body established

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Case study: nominating the Cantu in Paghjella, a male polyphonic singing tradition (France)

© Michèle Guelfucci-Glinatsis, 2009

Polyphonic singing

- Expert-practitioner meetings
- Establishment of a practitioner association
- Practitioner involvement in inventorying
- Media campaigns

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Case study: nominating the Mijikenda traditions (Kenya)

© National Museums of Kenya

Traditions and practices associated with the Kayas

- Community consultations
- Incorporating community ideas into the safeguarding plan
- Community development groups formed

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Ensuring community participation and consent

- Who is the community concerned?
- Who represents them, and with what mandate?
- How can they be informed and involved?
- How can safeguarding measures and other actions be developed with their involvement and consent?
- Who may and should be involved in the implementation and monitoring of safeguarding and other actions?

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Identifying the communities concerned

Ramman: religious festival and ritual theatre of the Garhwal Himalayas, India
© IGNCA, Ministry of Culture, India

- People who identify with one or more ICH elements
- Some communities are already recognized within the State Party (local, ethnolinguistic, religious communities, etc.)
- People may belong to several communities; leave or join communities
- People concerned should agree with their identification as a community

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Community complexities

It is often assumed that a community is: harmonious, homogenous, inclusive and willing to participate.

•Who is who within the community?

•Who decides who should or should not participate?

•Who participates and why?

•Who is left out and why?

•What needs to be done to ensure equal opportunities are created and there is support for all to participate?

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Gender and community involvement

- Why is a gender-based approach essential when considering community involvement and participation within the framework of the Convention?
- Contextualizes the practices and activities of gender-defined groups by analysing the social relationships that are established and the power dynamics of the community concerned
- Ensures that women and marginalized gender groups are equal spokespersons vested with the authority to reshape the communities they desire to be a part of and those they want to create

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Identifying representatives

- The need for representatives
- Existing representatives or not?
- Mandate and legitimacy of representatives
- Different views within communities

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Case study: The Patum of Berga (Spain)

The Patum of Berga
© Foto Luigi/Patronat Municipal de la Patum, 2000-2001

The Patum of Berga is a popular festival whose origin can be traced to medieval festivities and parades accompanying the celebration of Corpus Christi.

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Methods and purposes of community participation

- Through: workshops, meetings, consultations, polls, media, capacity building, awareness-raising, etc.
- For: identification of elements, awareness-raising, safeguarding, developing nominations, etc.

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Obtaining free, prior and informed consent

- **'Free'** – no undue pressure was exerted on those whose consent was sought
- **'Prior'** – the information required to consider whether to give consent or not was given in advance
- **'Informed'** – all relevant information required for making a balanced judgment was provided

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Protecting the rights of communities

States Parties shall endeavour to ensure ...

that the rights of the communities, groups and individuals … are duly protected when raising awareness about their heritage or engaging in commercial activities (OD 104)

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Ensuring that communities benefit

- Practising ICH brings benefits to communities; so can safeguarding activities
- Communities' capacities to manage their ICH should be enhanced (OD 107(m))
- Communities should benefit from awareness-raising activities (OD 81 and 101(d))
- Communities should be the primary beneficiaries of any commercial activities (OD 116)

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